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Case Number: 25STCV02756 Hearing Date: August 21, 2026 Dept: 413

TENTATIVE

RULING

HEARING DATE: 08/21/2026

CASE NUMBER: 25STCV02756

CASE NAME: Antwuan Anthony Gordon v. Smart & Final Store, LLC

MOVING PARTY: Defendant Smart & Final
Store, LLC

OPPOSING PARTY: Plaintiff Antwuan Anthony Gordon

PROCEEDING: Motion to Compel Arbitration

RULING SUMMARY: Smart & Final Store, LLC's Motion

to Compel Arbitration is granted. Smart & Final Store, LLC's Motion to

Compel Arbitration is granted. The

action is stayed pending the completion of the arbitration. The Court sets and

Order to Show Cause re Status of Arbitration for _____, 2026, at 8:30AM. The Case Management Conference is
off

calendar.

Background

On January 31, 2025, Antwuan Anthony

Gordon ("Plaintiff") filed a Complaint against Smart & Final Store, LLC

("Defendant") and Does 1 to 10.

The Complaint alleges five causes of action for (1) Discrimination, (2) Harassment; (3) Retaliation, (4) Wrongful Termination In Violation of Public Policy; and (4) Violation of the California Equal Pay Act (Lab. Code, § 1197.5(a).)

Defendant moves to compel arbitration of Plaintiff's claims. Plaintiff opposes the motion.

On May 14, 2026, the Court held a hearing on the matter and continued the matter subject to supplemental briefing. The Court requested the following:

Defendant is to submit a Supplemental Declaration by 08/07/2026.

Plaintiff's is to submit a Supplemental Declaration by 08/14/2026.

(05/14/2026 Minute Order.)

On August 7, 2026, Defendant filed its Supplemental Declaration. On August 14, 2026, Plaintiff filed his Supplemental Opposition, which was comprised of a supplemental brief rather than a declaration as requested by the Court.

motion to
compel arbitration

I. Legal Standard

"California law reflects a strong public policy in favor of arbitration as a relatively quick and inexpensive method for resolving disputes. To further that policy, Code of Civil Procedure, section 1281.2 requires a trial court to enforce a written arbitration agreement unless one of three limited exceptions applies. Those statutory exceptions arise where (1) a party waives the right to arbitration; (2) grounds exist for revoking the arbitration agreement; and (3) pending litigation with a third party creates the possibility of conflicting rulings on common factual

or legal issues.” (CCP, § 1281.2; *Acquire II, Ltd. v. Colton Real Estate Group* (2013) 213 Cal.App.4th 959, 967.) Similarly, public policy under federal law favors arbitration and the fundamental principle that arbitration is a matter of contract and that courts must place arbitration agreements on an equal footing with other contracts and enforce them according to their terms. (AT&T Mobility LLC v. Concepcion (2011) 563 U.S. 333, 339.)

In deciding a motion or petition to compel arbitration, trial courts must first decide whether an enforceable arbitration agreement exists between the parties and then determine whether the claims are covered within the scope of the agreement. (Omar v. Ralphs Grocery Co. (2004) 118 Cal.App.4th 955, 961.) The opposing party has the burden to establish any defense to enforcement. (Gatton v. T-Mobile USA, Inc. (2007) 152 Cal.App.4th 571, 579 [“The petitioner ... bears the burden of proving the existence of a valid arbitration agreement and the opposing party, plaintiffs here, bears the burden of proving any fact necessary to its defense.”].)

II. Discussion

Defendant

moves to for an order compelling this action to arbitration and staying the action pending arbitration.

A. Defendant’s Initial Burden

First,

the moving party bears the burden of producing ‘prima facie evidence of a written agreement to arbitrate the controversy.’ ” (Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158, 165 (Gamboa).) “The moving party ‘can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature.’ ” (Id. at p. 165.) “Alternatively, the moving party can meet its burden by setting forth the agreement’s provisions in the motion.” (Ibid.)

Defendant

meets its initial prima facie burden by presenting an electronically signed arbitration agreement purporting to bear the signature of Plaintiff. (Garcia Decl., Ex. A.) Defendant asserts that the arbitration agreement shows that on January 9, 2023 at 20:59 PST, Plaintiff signed the document agreeing to arbitrate all claims against Defendant. (Ibid.) “Under the Gamboa framework, the moving party is entitled to a presumption, in the first instance, that the agreement to arbitrate is authentic.” (Kinder v. Capistrano Beach Care Center, LLC (2023) 91 Cal.App.5th 804, 815.)

B. Plaintiff's Opposition

“If

the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement.” (Gamboa, supra, 72 Cal.App.5th at p. 165.) “[T]he opposing party may testify under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement.” (Ibid.)

Plaintiff

submits a declaration under oath stating that “[d]uring my onboarding process, I recall being directed to a desk located in the back of the store to complete various physical forms with pen.” (Gordon Decl., ¶ 3.) “At no point during this process was I accompanied by a manager or an HR representative to witness my signing of these documents.” (Id. ¶ 4.) Having reviewed the arbitration agreement he purportedly signed, Plaintiff states: “I unequivocally deny signing any arbitration agreement on January 9, 2023. I do not recognize the electronic signature or the timestamp associated with that date.” (Id. ¶ 6.) “I never saw the specific ‘Arbitration Agreement’ document during my onboarding, and I did not authorize any electronic system to affix my name to a document dated January 9, 2023.” (Id. ¶ 7.) “Any purported ‘Audit History’ claiming I signed this document is incorrect, as I was not logged into a store computer on the evening of January 9, 2023, for the purpose of signing this agreement.” (Id. ¶ 8.)

Plaintiff raises issues with the signature on the arbitration agreement of a “Jeff Wynot” under Defendant’s signature with the date May 4, 2020. (Gordon Decl. ¶ 6.) “I was not an employee of Smart & Final in 2020 and did not even apply for a position with the company until 2023. It is impossible that a

bilateral agreement was formed between myself and a manager nearly three years before I was hired.” (Ibid.)

The

Court finds that Plaintiff’s declaration is sufficient to challenge the authenticity of the electronic signature. “If the opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties. The burden of proving the agreement by a preponderance of the evidence remains with the moving party.” (Gamboa, supra, 72 Cal.App.5th at pp. 165-166.)

C. The Previous Tentative Ruling and Supplemental Declaration

The

Court previously issued a tentative ruling, identifying deficiencies in Defendant’s papers. Specifically, Defendant’s moving papers presented the declaration of Maria Garcia who is currently employed by Chedraui USA Inc. (“Chedraui”), the parent company of Defendant as the Group Vice President of Human Resources and who has “worked for Smart & Final and Chedraui in that capacity at all relevant times herein.” (Garcia Decl. ¶ 1.) Garcia states that Defendant uses “GRM Information Management Services (“GRM”) portal for employees to receive, review, and execute pending employment forms” and that the GRM was used in January 2023. (Id. ¶¶ 2, 3.)

Missing

from Garcia’s declaration was Plaintiff’s email address, that is the email address the GRM sent the portal link to. There was no evidence that the GRM sent the onboarding documents, including the personalized link, to an email belonging to Plaintiff. Without more evidence showing that the GRM portal was accessed and created using an email purportedly belonging to Plaintiff, Defendant could not show that it was Plaintiff who electronically accessed and signed the arbitration agreement at issue on January 9, 2023. Garcia attached a screenshot of the GRM portal time records purporting to show when the arbitration agreement was uploaded, but the screenshot did not show what email was used to access and execute the arbitration agreement. (Garcia Decl., ¶ 11, Ex. B.)

Consequently,

Defendant had failed to show that the electronic signature on the arbitration

agreement was the act of Plaintiff because only Plaintiff using his unique password and personal email could have accessed the GRM portal and signed the agreement. (See *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 843; *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1062; *Fabian v. Renovate America, Inc.* (2019) 42 Cal.App.5th 1062, 1067; see also Code Civ. Proc., § 1633.9 [“An electronic record or electronic signature is attributable to a person if it was the act of the person.”].)

The

Court also discussed the assertion that that Jeff Wynot's signed the agreement in advance. Defendant asserted that the agreement is enforceable and does not lack mutuality because it only needs to be signed by Plaintiff. (Civ. Code § 3388; see also *Serafin v. Balco Properties, Ltd., LLC* (2015) 235 Cal.App.4th 165, 174–177 [enforcing arbitration agreement signed by the employee, but not the employer, partly on the grounds that employer's assent to the policy was established by virtue of its drafting the policy and conveying it to the employee].) The Court agreed that, regardless of when Defendant's agent signed the arbitration agreement, the agreement is enforceable against Plaintiff if Plaintiff signed the agreement.

Defendant

now asserts that the personal email address provided by the employee for his application would be automatically imported from the C You application portal to the GRM. (Supp. Garcia Decl. ¶ 4.) GRM would then directly email the selected applicant forms, including the arbitration agreement, with a personalized link to the email address provided by the employee. (Id. ¶¶ 5-6.) These documents can only be accessed by using the unique personalized email link sent. (Ibid.) Garcia provides a screenshot of Plaintiff's C You portal which shows that the email he provided is . (Id. ¶ 9.)

This

sufficiently establishes that the electronic signature on the document was an act of Plaintiff. Defendant has shown by a preponderance of the evidence that the arbitration agreement could have only been signed by Plaintiff with the personalized link sent to Plaintiff's email address of record, .

D. Moving Defendants have shown the existence of an arbitration agreement.

As discussed above, the

arbitration agreement exists between the parties. It reads in relevant part:

1. Arbitration. This Agreement requires the Parties to arbitrate all Claims (as defined in Section 3 below) the Parties may have against each other. This includes within its scope any and all Claims as defined in Section 3 below that you might have against the Company or its parents, subsidiaries, affiliates, officers, directors, employees, agents, representatives, shareholders, successors and assigns. In arbitration, each side in the dispute presents its case to a neutral third party called an arbitrator, rather than to a judge or jury. You and Smart & Final are entitled to be represented by your own legal counsel throughout the arbitration process and at the arbitration hearing. After reviewing the evidence and considering the arguments of the Parties, the arbitrator will issue a written decision. There will be no trial by a judge or jury, and no appeal of the arbitrator's decision, except as provided by law.

2. Arbitration Procedure. Confidential arbitration shall be conducted in accordance with the JAMS Employment Arbitration Rules & Procedures ("JAMS Rules") in effect at the time the claim is made (except with respect to the contrary requirements set forth below in this paragraph), and a judgment upon any award rendered by the arbitrator may be entered in any court having jurisdiction. You may obtain a copy of the JAMS Rules by accessing the JAMS website at www.jamsadr.com/rules-employment-arbitration/ and/or by requesting a copy of the JAMS Rules from the Company's Human Resources Department by email at or by phone at (323) 869-7500. Arbitration shall be before a single arbitrator who shall be a retired judge. The process for choosing the arbitrator (not the qualifications of the arbitrator) shall be in accordance with the JAMS Employment Rules. The arbitrator shall hear the matter on consecutive business days without interruption, except in the event of a bifurcation or stipulation of the parties.

3. Claims Subject to Arbitration. Both Parties agree that any and all disputes, claims, or controversies between them arising out of or in connection with the employment relationship, application for employment with, or termination of employment from the Company, and not resolved by mutual agreement, shall be resolved by final and binding arbitration (except as set forth herein). This Agreement includes claims that Smart & Final may have

against you, or that you may have against Smart & Final. The claims covered by this Agreement, and subject to arbitration, include but are not limited to all past, present, and future claims against the Company, for wrongful termination; discrimination; harassment; retaliation; breach of contract/covenant; trade secrets; emotional distress; fraud; misrepresentation; defamation; tort claims; misclassification, minimum wage; off the clock work; overtime; bonuses; meal/rest periods; wage statements; reimbursement; penalties; wage and hour claims; benefits; violation of any federal, state or other government constitution, statute, ordinance or regulation, including but not limited to Title VII of the Civil Rights Act of 1964; the Age Discrimination in Employment Act of 1967; the Americans With Disabilities Act; the Fair Labor Standards Act; the Employee Retirement Income Security Act (unless a different arbitration process is provided for such claims); the Consolidated Omnibus Budget Reconciliation Act; the Family and Medical Leave Act; the California Fair Employment and Housing Act; the California Family Rights Act; the Pregnancy Disability Leave Act; the Worker Adjustment and Retraining Notification Act; the California Labor Code; the California Civil Code; the California Government Code; the California Wage Orders; the California Private Attorneys General Act (to the extent allowed by law); and any other common law, statute, ordinance, or regulation arising out of or in connection with the employment relationship under federal, state or local laws (collectively, the "Claims"). You have rights that are unaffected by this Agreement, and Section 3 does not cover claims that cannot be arbitrated as a matter of law. Specifically, this Agreement does not apply to or cover the following claims: (a) claims by you for workers' compensation benefits; (b) claims by you for unemployment compensation benefits; (c) claims brought in a court of competent jurisdiction by either you or the Company to compel arbitration under this Agreement, to enforce an arbitration award, or to obtain preliminary injunctive and/or other equitable relief in support of claims to be prosecuted in an arbitration by either party; (d) claims under the National Labor Relations Act; (e) claims based upon a pension or benefit plan which contains an arbitration or other dispute resolution procedure, in which case the provisions of such plan shall apply; and (f) any other claim that is not subject to arbitration as a matter of law.

(Garcia Decl., Exh. A.)

E. The arbitration agreement is subject to the FAA.

The arbitration agreement states,
in relevant part: "The Parties agree that the Company is engaged in
transactions involving interstate commerce, and this Agreement shall be
enforceable under the substantive and procedural provisions of the Federal
Arbitration Act, 9 U.S.C. §§ 1, et seq." (Decl. Garcia at Exh. A.)

The parties have agreed that the
arbitration agreement is governed by the FAA.

D.
Unconscionability

In the moving papers, Defendant argued
and made a showing that the arbitration agreement was not unconscionable. Plaintiff
did not contend that the agreement was unconscionable.

Conclusion

Smart & Final
Store, LLC's Motion to Compel Arbitration is granted. The action is stayed pending the completion of
the arbitration. The Court sets and Order to Show Cause re Status of Arbitration
for _____, 2026, at 8:30AM. The
Case Management Conference is off calendar.

Date: 08/21/2026 _____

William
E. Weinberger

Judge,
Los Angeles Superior Court